



IS GOD A JUST JUDGE?

TRIAL BY ORDEAL AND COMBAT
(6TH–12TH CENTURY)

IN CONTEXT

FOCUS

Establishing guilt

BEFORE

c. 1750 BCE The world's oldest known legal code, the Code of Hammurabi, includes the use of trial by ordeal.

AFTER

1215 Pope Innocent III bans clergy involvement in trials by fire and water.

1219 The general use of trials by ordeal is abolished under English King Henry III.

1396 The Battle of the Clans, one of the last mass trials by combat, takes place in Perth, Scotland.

16th–17th century In Europe and Colonial North America, ordeal by water is used in witch hunts, where sinking is taken to be proof of innocence.

1819 Trial by combat is abolished in the UK.

Judging legal cases by ordeal developed from the law codes of the Germanic peoples, which emerged in the 6th century CE after the fall of the Roman Empire. The practice arose where defendants and plaintiffs were not able to satisfy other modes of proof, such as providing a sufficient number of witnesses to swear to their version of the facts. Where a defendant was unable to provide witnesses or was considered to be untrustworthy, the chieftain or designated judges could resort to ordeal.

Water and fire

Several forms of ordeal became common in England and mainland Europe. Ordeal by hot water was first mentioned in the Salic Laws of the Franks (c. 507–511). The accused had to retrieve a stone from boiling water by dipping his hand into it. (The depth of the water depended on the severity of the crime.) The hand was bound and unwrapped 3 days later; if it had healed, the accused was deemed innocent. Ordeal by iron involved walking on red-hot irons or coals and examining the wound to see if it had festered or healed. Under the ordeal of the cross, the defendant and plaintiff

were made to stand with their arms outstretched; the first one to drop his arms lost the case.

Guilty parties often paid a fine or fled rather than face an ordeal. The innocent—believing they would suffer no injury—submitted. The clergy who administered the ordeals understood this and did not wish the innocent to suffer, so they often cheated; “boiling” water would be merely hot, for example.

Trial by combat

While trials by ordeal were usually administered to the lower classes, wealthy parties made more use of trial by combat—effectively, judicial duels—as a mode of proof. This was

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If then they do not give the oath, let him go to the threefold ordeal.

Woodstock Code of King Æthelred, 997

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